

Jharkhand Agricultural Produce Markets Act, 2000

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[State of Jharkhand - Act](#)

[Jharkhand Agricultural Produce Markets Act, 2000](#)

[JHARKHAND](#)

[India](#)

[Jharkhand Agricultural Produce Markets Act, 2000](#)

[Act 16 of 1960](#)

[Published on 4 December 1958](#)

[Commenced on 4 December 1958](#)

[\[This is the version of this document from 4 December 1958.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[Jharkhand Agricultural Produce Markets Act, 2000](#)

[\(Act](#)

[16 of 1960](#)

[\)](#)

[For Statement of Objects and Reasons, see the Bihar Gazette, Extraordinary of the 4th December, 1958; for Report of the Select Committee, see the Bihar Gazette, dated the 24th February, 1960.](#)

[\[The 1960 Act received the assent of the Governor on the 6th August, 1960, and the assent was first published in the Bihar Gazette Extra-ordinary, of the 10th September, 1960\]](#)

[An Act to provide for the better regulation of buying and selling of Agricultural Produce and the Establishment of Markets for Agricultural Produce in the State of \[Jharkhand\]](#)

[\[This Act enacted by the State of Bihar has been adapted by the State of Jharkhand by Notification No. 153 dated](#)

27.1.2001]

and for matters connected therewith.

Be it enacted by the Legislature of the [State of Bihar]

[This Act enacted by the State of Bihar has been adapted by the State of Jharkhand by Notification No. 153 dated 27.1.2001]

in the Eleventh Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title, extent and commencement.

- This Act may be called the Jharkhand Agricultural Produce Markets Act, 2000.

(2)

It extends to the whole of the State of Jharkhand.

(3)

It shall come into force at once.

2.

Definitions.

(1)

In this Act, unless there is anything repugnant in the subject or context-

(a)

["Agricultural produce" means all produce whether processed or non-processed, manufactured or not, of Agriculture, Horticulture, Plantation, Animal Husbandry, Forest, Sericulture. Pisciculture, and includes livestock or poultry as specified in the Schedule.]

[Substituted by Act 60 of 1982.]

(b)

"agriculturist" means a person who ordinarily by himself or by his tenants or hired labour or otherwise, is engaged in the production or growth of agricultural produce, but does not include a trader or broker in agricultural produce notwithstanding that such trader or broker is also engaged in the production or growth;

(bb)

["Board" means the Jharkhand Agricultural Marketing Board established under Section 33A;]

[Inserted by Act 60 of 1982.]

(c)

["broker" means an agent who in consideration of a commission merely negotiates and brings about a contract for the purchase or sale of notified agricultural produce on behalf of his principal, but does not receive, deliver, transport, pay for the purchase of, or collect the payment for the sale of, the notified agricultural produce;]

[Substituted by Act 60 of 1982.]

(d)

"bye-laws" means bye-laws made under section 53;

(e)

["commission agent" means a person who on behalf of his principal and in consideration of a commission or percentage upon the amount involved in each transaction keeps in his custody the agricultural produce of his principal and sells the same and holds himself liable to deliver it to the buyer and to make payment of its price to his principal;]

[Substituted by Act 60 of 1982.]

(f)

["Director" means the Director of Marketing of the Board and includes Regional Director or any other officer, appointed by the Board to discharge all or any of the functions of the Director under this Act, and such other officer duly notified by the Managing Director to discharge any one or all functions of the Director.]

[Substituted by Act 60 of 1982.]

(g)

"licensee" means a person or association, firm or company granted a licence under this Act;

(h)

["market" means a market established under this Act for the market area and includes, a principal market yard and sub-market yard or yards, if any;]

[Inserted by Act 60 of 1982.]

(i)

"market area" means any area declared to be a market area under section 4;

(j)

"market committee" means a committee established under section 6;

(k)

"market proper" means any area within the market area including all lands, with the buildings thereon, within such distance of the principal or sub-market yard, as the Jharkhand Government may, by notification, declare to be a market proper under section 5;

(ki)

["Regional Director" means a Regional Director of Agriculture Marketing, appointed by the Board to discharge any one or all the functions of the Director under this Act and the Rules made thereunder and such other officer duly notified by the Managing, Director of the Board to discharge any one or all the functions of the Regional Director.

[Inserted by Act 60 of 1982.]

(kii)

"Assistant Director" means an Assistant Director of Agriculture Marketing appointed by the Board to discharge any one or all the functions of the Assistant Director under this Act and the Rules made thereunder and such other officer duly notified by the Managing Director of the Board to discharge any one or all the functions of the Assistant Director.

(kiii)

"Director Vigilance" means a Director Vigilance of Agriculture Marketing appointed by the Board to discharge all the functions of the Director Vigilance under this Act and the Rules made thereunder, and such other officer duly notified by the Managing Director of the Board to discharge any one or all the functions of the Director Vigilance,

(kiv)

"Deputy Director" means a Deputy Director of Agriculture Marketing appointed by the Board to discharge any one or all the functions of the Deputy Director or of the Assistant Director under this Act and the Rules made thereunder and such other officer, duly authorised by the Managing Director of the Board to discharge any one or all the functions of the Deputy Director.]

(l)

"measurer" means a person whose business it is to measure a consignment of agricultural produce for sale;

(m)

"municipality" means any local area declared by or under the [Jharkhand]

[Substituted for 'Bihar and Orissa' by Notification No. 2755 dated 14.11.2002, published in Jharkhand Gazette (extra-ordinary) dated 30.11.2002 (adapting Bihar Municipal Act, 1922).]

Municipal Act, 1922 (B. & O. Act VII of 1922), to be a municipality and includes a notified area committee appointed under section 389 (c) of the said Act, and a Municipal Corporation;

(n)

"prescribed" means prescribed by rules;

(o)

["principal market yard" means any enclosure, building or locality within the market area declared to be a principal marked yard under section 5;]

[Substituted by Act 60 of 1982.]

(p)

"retail sale" means a sale of any agricultural produce not exceeding such quantity as may, by bye-law or rule, be fixed in respect of such agricultural produce;

[(p-i) "Sale" means any transfer of property in goods for each or deferred payment or other valuable consideration and shall include transfer or acquisition of goods on hire purchase or under any other system in which payment of valuable considerations is made by instalment notwithstanding the fact that the seller retains title in goods as valuable security of payment of consideration or for any other reason.

[Inserted by Act 60 of 1982.]

Explanation. - Notwithstanding anything contained in any law for the time being in force sale shall be deemed to have taken place for the purpose of this Act within a market area where the goods are transferred from the Principal to his selling-agent or to the factor within the market area or out-side the market area.]

(q)

"rules" means rules made under section 52;

(r)

"Schedule" means a schedule to this Act;

(s)

"Secretary" means the persons appointed as such under sub-section (1) of section 20 and includes an officiating or acting Secretary,

(t)

"sub-market yard" means any enclosure, building or locality within the market proper declared to be a sub-market yard under section 5;

(u)

"surveyor" means a person whose business it is to survey a consignment of agricultural produce for sale in regard to quality, refraction, adulteration and such other purposes;

(v)

"trade" means any kind of transaction of sale and purchase or any kind of remuneration on sale and purchase of any agricultural produce;

(w)

["trader" means a person ordinarily engaged in the business of buying and selling agricultural produce as a principal or as a duly authorised agent of one or more principals and includes a commission agent or a person ordinarily engaged in the business of processing of agricultural produce;]

[Substituted by Act 60 of 1982.]

Explanation. - The word "person" includes any firm, joint family, association or body of individuals whether incorporated or not.

(x)

"weighman" means a person whose business it is to weigh a consignment of agricultural produce for sale :

(y)

["buyer or purchaser" means a person who buys or agrees to buy any agricultural produce and includes a person who buys or purchases on behalf of any other person as his agent or servant, or commissioned agent;]

[Inserted by Act 60 of 1982.]

(z)

["seller" means a person who sells or agrees to sell any agricultural produce and includes a person who sells on behalf of any other person as his agent or servant or commission agent; and]

[Inserted by Act 60 of 1982.]

(zz)

["processor" means a person who processes any agricultural produce, either on his own account, or on payment of charges.]

[Inserted by Act 60 of 1982.]

(2)

If a question arises whether any person is or is not an agriculturist or a trader for purposes of this Act, the decision of the Director on such question shall be final, provided that the Director shall give the said person a reasonable opportunity of being heard before giving his decision.

Chapter II

Constitution of Markets and Market Committees

3.

Notification of intention of exercising control over purchase, sale, storage and processing of agricultural produce in specified area.

- [(1) Notwithstanding anything to the contrary contained in any other Act for the time being in force, the Jharkhand Government may, by notification, declare its intention of regulating the purchase, sale, storage and processing of such

agricultural produce and in such area, as may be specified in the notification.]

[Substituted by Act 60 of 1982.]

(2)

A notification under sub-section (1) shall state that any objection or suggestion which may be received by the Jharkhand Government within a period of not less than two months to be specified in the notification, shall be considered by the Jharkhand Government.

4.

Declaration of market area.

(1)

After the expiry of the period specified in the notification issued under section 3 and after considering such objection and suggestions as may be received before such expiry and after holding such enquiry as it may consider necessary, the Jharkhand Government may by notification, declare the area specified in the notification under section 3 or any portion thereof to be a market area for the purposes of this Act, in respect of all or any of the kinds of agricultural produce specified in the notification under section 3.

(2)

[On and after the date of publication of the notification under subsection (1), or such later date as may be specified therein, no municipality or other local authority, or other person, notwithstanding anything contained in any law for the time being in force, shall, within the market area, or within a distance thereof to be notified in the official Gazette in this behalf set up, establish, or continue, or allow to be set up, established or continued, any place for the purchase, sale, stores or processing of any agricultural produce so notified, except in accordance with the provision of this Act, the rules and bye-laws.

Explanation. - A municipality or other local authority or any person shall not be deemed to set up, establish or continue or allow to be set up, established or continued a place as a place for the purchase, sale, storage or processing of agricultural produce within the meaning of this section, if the quantity is as may be prescribed and the seller is himself the producer of the agricultural produce offered for sale at such place or any person employed by such producer to transport the same and the buyer is a person who purchases such produce for his own use or if the agricultural produce is sold by retail sale to a person who purchases such produce for his own use.]

[Substituted by Act 60 of 1982.]

(3)

Subject to the provisions of section 3, the Jharkhand Government may at any time by notification exclude from a market area, any area or any agricultural produce specified therein or include in any market area or agricultural produce included in a notification issued under sub-section (1).

(4)

Nothing in this Act shall apply to a trader whose daily or annual turnover does not exceed such amount as may be prescribed.

4A.

[Sections 3 and 4 not to apply to section 39.

[Inserted by Act 60 of 1982.]

(1)

The provisions of sections 3 and 4 shall not apply to the exercise of powers by the Jharkhand Government under section 39 to amend the schedule by addition of any item of agricultural produce not specified therein.

(2)

The State shall not order the deletion of any item in exercise of its power under section 39 without giving an opportunity for hearing to the affected parties.]

4B.

[Validating of market fee levied and collected.

[Inserted by Act 60 of 1982.]

- Notwithstanding any judgement, decree or order of any Court to the contrary, any market fee levied and collected shall be deemed to be valid as if such levy and collection was made under the provisions of this Act as amended by this Act and notification no. 730 dated 2nd May, 1977 shall be deemed never to have been issued and no suit or other legal proceeding shall be maintained or continued in any Court for the refund of the fee collected under the provisions of this

Act and no Court shall entertain any proceedings challenging the fee recovered or the continued levy and recovery of the fee merely on the ground that liability has ceased on the issuing of the notification no. 730, dated 2nd May, 1977.]

5.

Declaration of market yards.

(1)

For each market area there shall be one principal market yard and there may also be one or more sub-market yard or yards as may be necessary. (2) The Jharkhand Government may, by notification, declare-

(i)

[The Jharkhand Government may, by notification, declare any enclosure, building or locality in any market area to be the principal market yard and other enclosures, buildings or localities in such area to be one or more sub-market yards for agriculture produce or for any particular agriculture produce as may be necessary for the said Market area.]

[Substituted by Act 60 of 1982.]

(ii)

[* * *]

[Omitted by Act 60 of 1982.]

6.

Establishment of the Market Committee.

- For every market area the Jharkhand Government shall, by notification, establish a Market Committee.

7.

[Strength of Market Committee.

[Substituted by Act 60 of 1982.]

- A Market Committee shall consist of 18 members.]

8.

Constitution of the First Market Committee.

(1)

All the members of the First Market Committee shall be appointed by the Jharkhand Government from among persons representing the same interest and in the same proportion as specified in section 9.

(2)

[The Jharkhand Government shall appoint the Sub-divisional Officers of the subdivision where the principal market yard is situated, to be the Chairman, and an agriculturist-representative of the Committee to be the Vice-Chairman of the First Market Committee.

(3)

The term of office of the members including the Chairman and the Vice-Chairman of the First Market Committee shall save as otherwise provided in this Act, be one year from the date of the publication of their names in the official gazette under section 13, and if on the expiry of one year term and thereafter if within the period of six months, election is not held, the Committee shall cease to function and all powers and duties of the Committee under provision of the Act and Rule made thereunder, shall be exercised by such person as may be notified by the Jharkhand Government and election under Section 9 shall be held within six months from the date of such notification :

Provided however, due to any exigencies, the election is not held within six months, the Jharkhand Government may extend the period of election for further six months.]

[Substituted by Act 60 of 1982.]

9.

Constitution of the second and subsequent Market Committee.

- [(1) There shall be following categories of members in every market area

(i)

Seven agriculturists constituencies for electing seven representatives of agriculturists, in the manner prescribed.

(ii)

Two traders' constituencies for entire market area for electing two representatives of the licensed traders under this Act, in the manner prescribed.

(iii)

One shall be sub-divisional Officer of the sub-division in which head-quarters of the Market Committee is situated, who

shall represent the interest of the Jharkhand Government.

(iv)

Two co-operative societies' constituencies for the entire market area for electing two representatives of the co-operative societies holding valid licence under this Act.

(v)

One shall be a person appointed under sub-section (1) of section 20, who shall be the ex-officio member Secretary of the Market Committee.

(vi)

One shall be a person nominated by the State Bank of India, Jharkhand Region/Circle.

(vii)

One shall be a person elected from amongst the members of the municipality or notified area committee within whose jurisdiction the principal market yard is situated and in the event there is no municipality or notified area committee, from executive committee of the Gram Panchayat within whose jurisdiction the principal market yard is situated.

(viii)

One shall be a person nominated by Zila Parishad from amongst its members.

(ix)

One shall be a person nominated by Agriculture Department.

(x)

One shall be a member nominated by the Jharkhand Government from amongst the members of the Legislature in whose constituency, the principal market yard is situated.]

(2)

A member elected under clauses (i), (ii), (iii) and (iv) of sub-section (1) shall cease to hold office as such member if he ceases to be a member of the electorate by which or one of the persons by whom, he was elected, and in the case of a member elected, under clause (vi) of the said sub-section, if he is granted a licence under this Act for that Market area.

(3)

No act done by or on behalf of a Market Committee shall be questioned on the ground merely of the existence of any vacancy or defect in the constitution of the Market Committee.

(4)

[(i) An Officer, nominated by the Jharkhand Government, shall be this Chairman of the Market Committee for 2 terms or 6 years after the passing of this Act, thereafter the Jharkhand Government shall appoint, the Chairman from amongst the members of the Market Committee.

(ii)

The elected Market Committee shall elect one of its members, representing the agriculturists' interest to be its Vice-Chairman]

(5)

[The term of office of members, including the Chairman and the Vice-Chairman of the elected Market Committee, shall save as otherwise provided in this Act, be three years, from the date of publication of their names as members under section 13, and on the expiry of three years term and thereafter if within a period of 6 months election is not held, the committee shall cease to function and all powers and duties of the Committee under the provisions of Act and Rules made thereunder shall be exercised and discharged by such person as may be nominated by the Jharkhand Government and new Market Committee shall be constituted within six months from the date of such nomination:

Provided, however, due to any exigencies, the election is not held within six months, the Jharkhand Government may extend the period of election for another six months.]

[Substituted by Act 60 of 1982.]

(5)

[(i) A member elected under Clause (i),(ii),(iv) of sub-section (1) shall cease to hold office as such member, if he ceases to be a member of the electorate by which he was elected. Similarly, in the case of a member elected under Clause (vii) of the said sub-section, if he is granted a licence for that Market area under this Act, his membership shall come to an end.]

[Inserted by Act 60 of 1982.]

(6)

[All matters in relation election shall be challenged by an election petition before the prescribed authority and no court shall have any jurisdiction with regard to or in connection with any election under this section.]

[Inserted by Act 60 of 1982.]

10.

Disqualification of members.

- No person shall be eligible for election or appointment as a member of the Market Committee-

(a)

who is less than 18 years of age;

(b)

who is of unsound mind;

(c)

who is an employee of the Market Committee;

(d)

who has applied for being adjudged an insolvent or is an undischarged insolvent;

(e)

who has been convicted for an offence-

(i)

[under this Act or the Essential Commodities Act, 1955 (X of 1955), or]

[Substituted by Act 60 of 1982.]

(ii)

involving moral turpitude which in the opinion of the State Government, makes him unfit to be elected or appointed as a member of the Market Committee; or

(f)

who has directly or indirectly any share or interest in any contract with, by or on behalf of the Market Committee.

11.

Filling of casual vacancies.

- If any member is unable, by reason of his death, resignation, removal or otherwise, to complete his term of office, the vacancy so caused shall be filled by the election or appointment, as the case may be, of another person, and the person so elected or appointed shall fill such vacancy for the unexpired portion of the term for which member in whose place such person is elected or appointed would otherwise have continued in office.

12.

Procedure on failure of electorate to elect members.

- If at any election any of the electorates, mentioned in clauses (i) to (iv) of sub-section (1) of section 9 fails, within a period of three months from the date of occurrence of the vacancy, to elect or appoint, as the case may be, a member or members referred to in the said clauses, or on the occurrence of casual vacancy, to fill the said vacancy as provided in section 11, the Jharkhand Government shall give notice in writing to the electorate concerned to elect or appoint a member or members, as the case may be, or fill the vacancy within a month from the date of service of such notice, and on the failure of the said electorate again to elect or appoint members, as the case may be, or to fill the vacancy within the said period, the Jharkhand Government shall appoint on behalf of electorate concerned a person or persons as member or members, as the case may be.

13.

Publication of names of members, etc. in the Official Gazette.

- The names of the Chairman and of every member appointed or elected under sections 8, 9, 11 or 12 shall be published by the Jharkhand Government in the Official Gazette.

14.

Removal of Member, Chairman or Vice-Chairman from the Market Committee.

(1)

The Jharkhand Government may, if it thinks fit on the recommendation of the Market Committee supported by at least two thirds of the total number of its members, remove any member, holding the Chairman and Vice-Chairman of the Market Committee elected or appointed under this Act, if such member, Chairman or Vice-Chairman has, in opinion of the Jharkhand Government, been guilty of neglect or misconduct in discharge of his duties or of any disgraceful conduct

or has become incapable of performing duties as a member, Chairman or Vice-Chairman as the case may be :

Provided that no resolution recommending the removal of any such person shall be passed by the Market Committee unless the person to whom it relates has been given a reasonable opportunity of showing cause why such recommendation should not be made.

(2)

The decision of the Jharkhand Government under sub-section (1) shall be final.

15.

[Sale of agricultural produce.

[Substituted by Act 60 of 1982.]

(1)

No agricultural produce, specified in notification under sub-section (1) of section 4 shall be bought or sold by any person at any place in the market area other than the relevant principal market yard or sub-market yards established therein except such quantity as may on this behalf be prescribed for retail sale or personal consumption.

(2)

The sale and purchase of such agricultural produce in such area, notwithstanding anything contained in any law, be made by means of open auction or tender system except in cases of such class or description of produce as may be exempted by the Board.]

[Substituted by Act 60 of 1982.]

16.

Prohibition of trade allowance except as prescribed.

- No person shall make or recover any trade allowance other than an allowance prescribed by the rules, or bye-laws, in any market area in any transaction in respect of the agricultural produce concerned, and no Court, shall in any suit or proceeding arising out of any such transaction have regard to or recognise any trade allowance not so prescribed.

Explanation. - Every deduction other than a deduction on account of deviation from sample when the purchase is made by sample or on account of deviation from standard when the purchase is made by reference to a known standard or on account of difference between the actual and the standard weight of the container or on account of the admixture of foreign matter shall be regarded as trade allowance for the purpose of this section.

Chapter III

Incorporation of Market Committee: Its Objects, Powers and Duties

17.

Incorporation of Market Committee.

- Every Market Committee shall be a body corporate by such name as the Jharkhand Government may specify by notification in the Official Gazette, and shall have perpetual succession and a common seal, with power to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any such property, subject to the prescribed conditions and restrictions, and may by the said name sue and be sued, and subject to rules, bye-laws and the provisions of this Act, it shall be competent to do all other things necessary for the purpose for which it is established.

17A.

[Act of Market Committee not to be invalidated.

[Inserted by Act 60 of 1982.]

- No act of a Market Committee, or of any sub-committee thereof, or of any person acting as member, Chairman, Vice-Chairman, presiding authority or Secretary shall be deemed to be invalid by reason only of some defect in the constitution or appointment of such Market Committee, sub-committee, member, Chairman, Vice-Chairman, presiding authority or Secretary, or on the ground that they or any one of them was disqualified for such office, or that formal notice of the intention to hold a meeting of the market committee or of the sub-committee was not given duly or by reason of such act having been done during the period of vacancy in the office of the Chairman, Vice-Chairman, or Secretary or member of such Market Committee or sub-committee or for any other informality not affecting the merit of the case.]

[Substituted by Act 60 of 1982.]

18.

Powers and duties of the Market Committee.

- [(1) It shall be the duty of a Market Committee to implement the provisions of this Act, the rule and bye-laws made thereunder in the market area to provide such facilities for marketing of agricultural produce therein as the Board may from time to time direct, and do such other acts as may be required in relation to the superintendence, direction and control of market, or for regulating the marketing of agricultural produce in any place in the market area, and the purpose connected with the matters, and for that purpose the Market Committee may exercise such powers and perform such functions and discharge such duties as may be provided by or under this Act.]

[Substituted by Act 60 of 1982.]

(2)

Without prejudice to the generality of the foregoing provision, a Market Committee may:-

(i)

when so required by the Jharkhand Government, to establish a market for the market area providing for such facilities as the Jharkhand Government may, from time to time, direct in connection with the purchase and sale of the agricultural produce concerned;

(ii)

[where a market is established under sub-clause (i) to issue licences in accordance with the rules to traders, brokers, weighmen, measurers, surveyors, warehousemen and other persons including persons or firms engaged in the processing, storing or pressing of agricultural produce concerned operating in the market area;]

[Substituted by Act 60 of 1982.]

(iii)

to maintain and manage the principal market yard and sub-market yards and to control, regulate and run the market in the interest of the agriculturists and licences in accordance with the provisions of this Act and the rules and the bye-laws made thereunder;

(iv)

to act in the prescribed manner as mediator, arbitrator or surveyor in all matters of differences, disputes, claims, etc, between licensees inter se or between them and persons making use of the market as sellers of agricultural produce;

(v)

[to control and regulate the admission of persons and vehicular traffic to the principal market yard or sub-market yards to determine the conditions for the use of market and to check and prosecute persons trading without a valid licence in the market area;]

[Substituted by Act 60 of 1982.]

(vi)

to bring, prosecute or defend, or aid in bringing, prosecuting or defending any suit, action, proceeding, application, or arbitration in regard to any matter on behalf of the committee, or otherwise when directed [by the Board]

[Substituted by Act 60 of 1982.]

;

(vii)

to enforce the provisions of this Act, the rules and bye-laws; and

(viii)

to perform such other duties and exercise such other powers as are imposed or conferred upon it by or under this Act, the rules or the bye-laws.

19.

Appointment of sub-committee or joint committee.

(1)

The Market Committee may appoint from among its members and with the previous approval of [the Board]

[Substituted by Act 60 of 1982.]

from outsiders, a sub-committee or a joint committee and may delegate to such committee such of its powers or duties as it may think fit.

(2)

The Market Committee may revise any decision of a sub-committee or joint committee.

20.

Appointment and salaries of officers and servants of the Market Committee.

(1)

Every Market Committee shall have a person as a Secretary appointed by the Jharkhand Government [or the Board]
[Substituted by Act 60 of 1982.]

on such terms and conditions as may be prescribed.

(2)

The Jharkhand Government [or the Board]

[Substituted by Act 60 of 1982.]

may appoint Engineers and provide such other technical services as it may consider necessary for the efficient working of the market.

(3)

The Market Committee shall contribute such sum not exceeding forty percent of its gross income as may be determined by the Jharkhand Government towards the cost of maintenance of the services mentioned in sub-sections (1) and (2) of audit.

(4)

Subject to the provisions of sub-sections (1), (2) and (3) and the rules and bye-laws, the Market Committee may employ also such number of other officers and servants and pay such officers and servants such salaries, as [or the Board]

[Substituted by Act 60 of 1982.]

may sanction.

(5)

Subject to the approval of the Jharkhand Government [or the Board]

[Substituted by Act 60 of 1982.]

the Market Committee may, in the case of any officers and servants provide for the payment to them of such leave allowances, pensions or gratuities as it deems proper and may provide for the creation and management of Provident Fund for compelling contribution thereon on the part of its officers and servants and for supplementing such contribution out of the Market Committee Fund.

21.

Power and duties of the officers and servants of the Committee.

- The Chairman, Vice-Chairman, the Secretary, Engineer and other officers and servants of the Market Committee shall exercise such powers and perform such duties as are conferred or imposed on them by or under this Act or by the Market Committee or the rules or bye-laws.

22.

Responsibilities of the Chairman of Market Committee.

(1)

The Chairman shall conduct all correspondence in the name of the Committee, and shall be responsible for the maintenance of all records and accounts, for the punctual and correct submission of prescribed reports and accounts and for custody of all money not deposited into the Government treasury or the State Bank of India.

(2)

He shall keep a minute book in which shall be entered the proceeding of every meeting of the Committee signed by himself.

23.

President of meetings of the Market Committee.

- The Chairman or in his absence the Vice-Chairman shall preside at every meeting of the Market Committee and in the absence of both, the members present shall elect one from among themselves to preside at the meeting.

24.

Decision to be by majority of votes.

(1)

Save as otherwise provided by this Act, every matter coming before the Market Committee shall be decided by a majority of votes of the members present and voting in the meeting.

(2)

In case of equality of votes, the President of the meeting shall have a second or casting vote.

25.

Quorum of meeting.

- Seven members shall form the quorum for a meeting of the Market Committee.

26.

Appeal against order passed by Chairman.

- An officer or servant of the Market Committee appointed under sub-section (4) of section 20 considering himself aggrieved by any order of discharge, removal or dismissal passed by the Chairman may [appeal to the Managing Director of the Board]

[Substituted by Act 60 of 1982.]

which may thereupon, affirm, modify or set aside any such order or pass such other order as it thinks fit.

27.

[Power to levy fees.

[Substituted by Act 60 of 1982.]

(1)

The Market Committee shall levy and collect market fees on the agricultural produce bought or sold in the market area at the rate of rupee one per Rs 100 worth of agricultural produce.

Illustration. - Paddy sold in the market area as well as rice produced from such paddy, shall both be leviable.

Explanation. - All notified agricultural produce leaving a market area, shall, unless the contrary is proved, be presumed to have been bought or sold in such area provided that, when any agricultural produce brought in any market area for the purpose of processing or export is not processed or exported therefrom as the case may be, or any such produce processed in the market area is not exported therefrom within twenty one days from the date of its arrival therein, it shall, until the contrary is proved, be presumed to have been bought or sold in the market area, and shall be liable for the levy of fees under this section, as if, it had been so bought or sold.

(2)

The market fee chargeable under sub-section (1) shall be payable by the buyer, in the manner prescribed.

(3)

The fee chargeable under sub-section (1) shall not be levied more than once on a notified agricultural produce in the same notified Market Area.]

27A.

[Accounts of purchase and sale and assessment of market fee.

[Inserted by Act 60 of 1982.]

(1)

Every Market Committee shall have an assessment sub-committee consisting of the Chairman, Vice-Chairman and the Secretary of the Market Committee for the purpose of assessment and levy of fee, in the manner prescribed.

(2)

Every licenced trader and every trader exempted under section 42 shall within 15 days after the end of each month, submit to the Secretary of the Market Committee, or any other officer empowered by the Board, a return in Form 'A' showing the purchase and sale of each transaction of an agricultural produce.]

(3)

The sub-committee shall maintain a register in Form B showing the total purchase and sales made by traders and the fees recovered from them.

(4)

The sub-committee shall levy the fee payable under section 27 on the basis of the return furnished under sub-section(2).

(5)

If any trader fails to submit a return as prescribed in sub-section (2) or the sub-committee has reason to believe that any such return is incorrect, it shall after giving a notice in Form C to the trader concerned require him on a date and at a time and place to be specified therein, to attend either in person or through an authorised representative or to produce or cause to be produced any account or other evidence on which such trader may rely in support of such return.

(6)

On the date specified in the notice or as soon thereafter as the case may be, the sub-committee, after examining the accounts and other evidence produced by the trader and such other evidence, as the sub-committee, may by notice in writing require at the specified place, shall proceed to assess the amount of market fee leviable on the trader.

(7)

If a trader, having furnished a return fails to comply with all the terms of the notice under sub-section (5) or if the accounts and other evidence produced by the trader are in the opinion of the sub-committee, incorrect, incomplete or unreliable, either wholly or partly, the sub-committee shall assess to the best of its judgement, the amount of market fee leviable on the trader.

(8)

In addition to the market fee levied under sub-section (7), a defaulter trader may be liable to pay a penalty equal to the fee so levied, if so ordered by the sub-committee.

(9)

Habitual default in submission of returns and habitual submission of false return shall be a sufficient ground for suspension or cancellation of or refusal to renew a licence, and provision of this section shall apply in addition to and not in derogation of any other law penal or otherwise applicable to non-compliance or defective compliance with any duty imposed upon a trader under this Act or under the rules made hereunder, or by any bye-law or order of a Market Committee.

(10)

The assessment order made under sub-section (7) and order imposing penalty under sub-section (8) shall be communicated to the trader by means of a demand notice in Form D and copy thereof shall be granted to the trader on his making written application and on paying a sum of two rupees as copying fee to the committee, the sub-committee shall maintain a register of copying fees.

(11)

The copy shall be prepared in the office of the Market Committee and certified to be correct by the Secretary or in his absence by another person appointed in this behalf by the Chairman. Such certificate shall give the date on which the application was received and the copy prepared and delivered to the applicant and shall be conclusive evidence of the correctness of the date.]

27AA.

[

[Inserted by Act 60 of 1982.]

- If upon an information, which has come into the possession of the Assessment Sub-committee, the Committee is satisfied that reasonable ground exists to believe that any amount of transaction of sale or purchase of a trader in respect of any period has for any reason, escaped assessment, or a trader assessed under section 27A has been under assessed or any deduction therefrom has been wrongly made, the Assessment Sub-committee may:-

(a)

within 6 years of the expiry of such period where it has reason to believe that the trader has concealed, omitted or failed to disclose fully the particulars of his total amount of transaction of sale or purchase or has furnished incorrect particulars of his transaction and thereby has given figures below the real amount.

(b)

in any other case, within 4 years of the expiry of such period, the Assessment Sub committee shall serve on the trader a notice containing all the stipulations which may be included in a notice in Form 'C and proceed to assess or re-assess the amount of fees due from the trader in respect of the amount of transaction of sale or purchase by such trader.]

27B.

[Appeal.

[Inserted by Act 60 of 1982.]

(1)

Any person dissatisfied with the order passed on assessment may appeal to the Regional Director of Agriculture Marketing of the area concerned.

(2)

No appeal under sub-section (1) against the order of assessment passed under sub-section (7) of Section 27-A or against the order of penalty passed under sub-section (8) of section 27A, or assessment under section 27AA shall be entertained unless the appellate authority is satisfied that the appellant has deposited with the Market Committee :

(a)

In case of an appeal against the order of assessment and levy of market fee under sub-section (7) of section 27A or

section 27AA one third of the fee assessed as due against him or the admitted amount of fee whichever is higher.

(b)

In case of an appeal against the order passed under sub-section (8) of section 27A, ten percent of the levy of penalty due from him.

(3)

Every appeal under this section shall be filed within thirty days of receipt of the demand-notice.]

27C.

[Power of Revision of Appeal and Examination of Record.

[Inserted by Act 60 of 1982.]

(1)

Subject to such rules as may be made under this Act, an order passed on appeal under sub-section (1) of section 27-B, may on application be revised by the Managing Director of the Board, provided such application is filed within 45 days of the passing of the order.

(2)

The Managing Director of the Board may call for and examine the record of any proceeding under this Act in which any order has been passed by any other authority, for the purpose of satisfying himself as to the legality or propriety of such order and may after examining the record and making or causing to be made such enquiry as he may deem necessary, pass such order which he thinks proper.

(3)

No order under this section shall be passed without giving the trader and the authority whose order is sought to be reviewed or revised, a reasonable opportunity of being heard.

(4)

The order passed by the Managing Director of the Board shall be final and conclusive.]

28.

Power to borrow.

(1)

A Market Committee may, with the previous sanction of the Jharkhand Government, raise money required for carrying out the purposes of this Act on the security of any property vested in and belonging to such Committee and of any fee leviable by it under this Act.

(2)

[A Market Committee may, for the purpose of meeting the initial expenditure on land, buildings and equipment required, for establishing a market, obtain a loan from the Jharkhand Government or the State Bank of India constituted under the State Bank of India Act, 1955 (no. 23 of 1955) or any subsidiary bank as defined in the State Bank of India (Subsidiary Bank) Act, 1959 (no. 38 of 1959) or a Bank specified in column 2 of the first schedule to the Banking Companies (Acquisition and Transfer of Undertaking) Act, 1970 (no. 5 of 1970) or any corporate body (including a company as defined in section 3 of the Companies Act. 1956) in which not less than fifty-one percent of the paid up share capital is held by the Central Government or the Jharkhand Government or partly by the Central Government and partly by the Jharkhand Government.

(3)

The conditions subject to which such money or loan shall be raised or obtained and the time within which the same shall be re-payable, shall be subject to the previous sanction of the Board.]

[Substituted by Act 60 of 1982.]

29.

Market Committee Fund.

- All money received by a Market Committee shall be paid into a fund to be called the Market Committee Fund and all expenditure incurred by the Market Committee under or for the purposes of this Act shall be defrayed out of the said fund and any surplus remaining with the Market Committee after such expenditure has been met shall be invested in such manner as may be prescribed in this behalf.

30.

Application of Market Committee Fund.

- Subject to the provision of section 29, the Market Committee fund may be applied to the following purposes only

namely:-

- (i)
the acquisition of a site for the market;
- (ii)
the maintenance and improvement of the market;
- (iii)
the provision and maintenance of standard weights;
- (iv)
the construction and repair of buildings, [check posts, market gates and other fixtures]
[Inserted by Act 60 of 1982.]
necessary for the purpose of such market and for the health, convenience and safety of the persons using it;
- (v)
the pay, pensions, leave allowances, gratuities, compensations for injuries resulting from accidents, compassionate allowances and contributions towards leave allowances, pensions or provident fund of the officers and servants employed by it;
- (vi)
the payment of interest on the loans that may be raised for the purposes of the market and the provision of a sinking fund in respect of such loans;
- (vii)
the expense of and incidental to elections;
- (viii)
the construction, repair and maintenance of means of communication which are useful for the purposes of [regulation, control and]
[Inserted by Act 60 of 1982.]
development of a market or for the convenience and safety of the persons using it;
[(viii-A) In the concerned Market Committee Area, for commutation of farmers to the villages, arrangement for link roads connecting the main road, shall be made on priority basis out of the Development Fund.]
[Inserted by Act 60 of 1982.]
- (ix)
the planting and rearing of trees, and making arrangement for providing water to the persons and cattle coming to a market and like purposes;
- (x)
with the previous sanction of the Director or any other officer specially empowered in this behalf by the [Board,]
[Substituted by Act 60 of 1982.]
and other purpose whereon the expenditure of the market fund is in the public interest;
- (xi)
such travelling and other allowances of the members of the Market Committee as may be prescribed; and
- (xii)
any other purposes which the Jharkhand Government may notify by a special order.

31.

Execution of contracts.

(1)

Every contract required to be entered into by the Market Committee shall be in writing and signed on behalf of the Market Committee by its Chairman and [Vice-Chairman and Secretary]

[Substituted by Act 60 of 1982.]

of the Committee.

(2)

No contract other than a contract executed as provided in sub-section (1) shall be binding on the Market Committee.

31A.

[Establishment of check posts.

[Inserted by Act 60 of 1982.]

- The Market Committee may set up and erect check posts, market gates and other fixtures at any place in the market area, with a view to prevent evasion of market fee payable under this Act and to control, regulate and run the market with prior approval of the Board, in such manner as may be prescribed.]

31B.

Power to order production of accounts and power of entry, inspection and seizure.

- [(1) The Secretary of the Market Committee, and any officer or servant of the Market Committee or Board duly authorised by the Chairman of the Market Committee or the Managing Director of the Board, the Regional Director, the Director Vigilance, may require any person carrying on business in any kind of notified agricultural produce to produce before him the accounts and other documents and to furnish any information relating to the stocks of such agricultural produce or purchases, sales and deliveries of such agricultural produce by such person and also any other information relating to payment of the market fees by such person

(2)

All accounts and registers maintained by any person in the ordinary course of business in any notified agricultural produce and documents relating to the stock of such agricultural produce or purchase, sales and deliveries of such agricultural produce in his possession and the office establishment, godowns, vessel or vehicle of such person shall be open to inspection at all reasonable time by such officers and servants of the Market Committee as may be authorised by (he Chairman of the Market Committee in this behalf.

(3)

If any such officer or servant has reason to suspect that any person is attempting to evade the payment of any market fee due from him under subsection (2) of section 27 or that any person has purchased any notified agricultural produce in contravention of any of the provisions of this Act or the Rules, or the bye-laws in force in the market area, he may for reasons to be recorded in writing seize such accounts, registers or documents of such persons as may be necessary and shall grant a receipt for the same and shall retain the same only so long as may be necessary for examination thereof.

(4)

For purpose of sub-section (2) or sub-section (3) such officer or servant may enter or search any place of business, warehouse, office establishment, godown, vessel or vehicle where such officer or servant has reason to believe that such person keeps or for the time being keeps any accounts, registers or documents of his business, or stock of notified agricultural produce relating to his business

(5)

Where any book of accounts or other documents are seized from any place and there are entries therein making reference to quantity, quotations, rates, receipt of payment of money or sale or purchase of agricultural produce, such book of accounts or other documents shall be admitted in evidence without witness having to appear to prove the same and such entries shall be prima facie evidence of the matters, transactions and accounts purported to be therein recorded.

(6)

[If any person, by himself, or by any person in his employment-

(i)

voluntarily obstructs, offers any resistance to or impedes, or otherwise interferes with; or

(ii)

refuses or fails to give or wilfully gives false or misleading information to the officer duly appointed under section 318; who is acting in accordance with his duty thereunder.

Such person shall be liable to penalty which may extend to one thousand rupees. The Regional Director on receiving report from the authorised officer of such resistance, obstruction or impediment or interference shall cause a notice to be served on the person complained of and after giving an opportunity of hearing may impose penalty and pass necessary orders. An appeal may be filed against the order of the Regional Director within one month before the Director of Marketing. The order passed by the Director of Marketing in this regard shall be final.]

(7)

[The Secretary of the Market Committee or any officer or servant of the Board or of the Market Committee duly empowered by the Chairman of the Market Committee or the Managing Director of the Board, the Regional Director, the Director Vigilance may detain any person (or vehicle) found carrying or removing any notified agricultural produce for

transport of which market fee has not been paid or realised or not shown in the account to have been realised, and may examine the goods and may require production of the documents, authorising removal thereof If the document tallies with the goods the officer or servant of the Board or the Market Committee may endorse thereon the time, date and place of his examination thereof.]

[Inserted by Act 60 of 1982.]

31C.

[Power to stop vehicles etc.

[Inserted by Act 60 of 1982.]

(1)

At any time, when so required by any officer or servant of the Market Committee or the Board empowered in this behalf by the Managing Director of the Board or Chairman of the Market Committee, the Director Vigilance or Regional Director, the driver or any other person incharge of any vehicle, vessel or other conveyance, shall stop the vehicle, vessel or other conveyance, as the case may be, and keep it stationary as long as may reasonably be necessary, and allow such officer or servant to examine the contents in the vehicles, vessel or other conveyance and inspect all records relating to the notified agricultural produce being carried and give his name and address and the name and address of the owner of the vehicle, vessel or other conveyance.

(2)

The person empowered under sub-section (1) shall have power to seize any notified agricultural produce if such officer or servant has reason to believe that any fee or other amount due under this Act in respect of such produce has not been paid or not entered into the account or documents relating to transaction and such seizure shall forthwith be reported by the officer or servant, aforesaid, to a Magistrate having jurisdiction to try the offence under this Act and the provisions of sections 457, 458 and 459 of the Code of Criminal Procedure, 1973 (Act II of 1974) shall as far as may be apply in relation to the notified agricultural produce seized as aforesaid as they apply in relation to property seized by a police officer.

(3)

No person shall remove or cause to be removed or transport any goods unless market fee payable under the Act has been paid or realised. Any vehicle or conveyance and the owner or the driver or the person incharge of the vehicle or the conveyance shall carry with himself a document showing the payment of market fee on such produce having been paid or realised or charged by the trader or by the staff of the Market Committee.

(4)

The Secretary of the Market Committee or any other officer or staff of the Market Committee or of the Board duly authorised by the Chairman of the Market Committee or the Managing Director of the Board may seize or remove stock of the agricultural produce and the animals, vehicles, vessels or other conveyance used in carrying or transporting the said produce in contravention of any provision of the Act, Rules, by-laws or order issued in this behalf or of the licence issued under the rules.]

Chapter IV

Supersession or Dissolution of Market Committee

32.

Supersession of Market Committee.

- If in the opinion of the Jharkhand Government a Market Committee is not competent to perform, or persistently makes default in performing, the duties imposed on it by or under this Act or exceeds or abuses its powers, the Jharkhand Government may, by notification supersede such Market Committee :

Provided that before issuing a notification under this section, the Jharkhand Government shall give a reasonable opportunity to the Market Committee for showing cause why it should not be superseded and shall consider the explanations and objections, if any of the Market Committee.

33.

Consequences of supersession.

(1)

Upon the publication of a notification under Section 32 superseding a Market Committee, the following consequences shall ensue :

(i)

all the members including the Chairman and the Vice-Chairman of the Market Committee shall, as from the date of such publication, be deemed to have vacated their office.

(ii)

the Jharkhand Government shall by order-

(a)

constitute a new Market Committee under Section 9 within one year of the date of the publication of the notification under Section 32, or

(b)

subject to the provision of sub-clause (a) make such arrangements for a period not exceeding one year for carrying out the functions of the Market Committee as it thinks fit and may for that purpose, direct that all the powers and duties which under the provisions of this Act are to be exercised and performed by the Market Committee or its Chairman shall be exercised and performed by such person or persons as the Jharkhand Government may appoint in this behalf:

Provided that the person who held the office of Secretary of the superseded Market Committee shall not be eligible for such appointment ;

(iii)

All the assets vesting in the Market Committee shall, subject to all its liabilities, vest in the Jharkhand Government except that in case a new Market Committee is constituted, they shall vest in the Jharkhand Government only till the date of the first meeting of the new Market Committee at which a quorum is present and thereafter re-vest in the new Market Committee.

(2)

If the Jharkhand Government does not make such an order under clause (ii) of sub-section (1) it shall transfer all the assets of the Market Committee, which remain after satisfaction of all its liabilities, to the municipality or other local authority, as the case may be, within whose jurisdiction the Market Committee is situated, or if there are more than one such municipalities or other local authorities to each of such municipalities or other local authorities, such portion of the assets as the Jharkhand Government may determine.

(3)

A municipal or other local authority to which the assets of a Market Committee have been transferred under sub-section (2) shall utilise such assets for such object in the area within its jurisdiction as the Jharkhand Government considers to be for the benefit of the agriculturists in that area.

[Chapter IV-A]

[Inserted by Act 60 of 1982.]

Marketing Board

33A.

[Establishment of Board.

[Inserted by Act 60 of 1982.]

(1)

For the purposes of exercising superintendence and control over Market Committee, and for exercising such other powers and performing such functions as are conferred or entrusted under this Act, the Jharkhand Government shall, by notification in the official Gazette, establish a Board called the Jharkhand Agricultural Marketing Board.

(2)

The Chairman of the Board shall be the person nominated by the Jharkhand Government. The number of the members of the Board shall not exceed fifteen. These members shall be appointed by the Jharkhand Government.

(3)

The members of the Board shall be appointed by the Jharkhand Government by notification in the Official Gazette, from amongst the following categories of persons, namely :

(a)

an officer of Finance Department of the Jharkhand Government;

(b)

two officers of the Agriculture Department of the Jharkhand Government;

(c)

an officer of the Revenue Department of the Government;

(d)
Chief Engineer of the Rural Engineering Organisation of the Jharkhand Government, ex-officio;

(e)
The Chief Town Planner of the Jharkhand Government, ex-officio;

(f)
an officer of the Ministry of Agriculture of the Government of India to be nominated by that ministry;

(g)
Managing Director of the State Bank of India or his nominee;

(h)
five members to be nominated from amongst the members of the Market Committee;

(i)
Director, Marketing;

(j)
The Managing Director of the Board shall function as the member Secretary of the Board.

(4)
The Managing Director of the Board shall function as the Chief Executive Officer of the Board who shall be an officer of the State Government not below the rank of a Collector.

(5)
The membership of persons, other than the official members shall be at the pleasure of the Government.]

33B.
[Incorporation of Marketing Board.

[Inserted by Act 60 of 1982.]

- The Board shall be a body corporate by the name of the Jharkhand Agricultural Marketing Board having perpetual succession and common seal with power to acquire and hold property, both movable and immovable and to lease, sell or otherwise transfer any such property, subject to the prescribed conditions and restrictions, and, may by the said name sue and be sued, and subject to the rules, bye-laws and the provisions of this Act, it shall be competent to do all other things necessary for the purposes for which it is established.]

33C.
[Board's Fund.

[Inserted by Act 60 of 1982.]

(1)
Every Market Committee shall, out of its fund, pay to the Board as contribution, such percentage of its income derived from licence fees and market fees as may be prescribed to meet expenses of the establishment of the Board and also those incurred in the interest of the Market Committee.

(2)
The Board may from time to time, with the previous sanction of the Jharkhand Government and subject to the provisions of this Act and to such conditions as the Jharkhand Government may by general or special order determine, borrow any sum required for the purposes of this Act whether by issue of bonds or stocks.

(3)
The Board may at any time have on loan under sub-section (1), apart from the amount of loans from the Jharkhand Government an amount excluding such amount as the Jharkhand Government may from time to time fix in that behalf.

(4)
Stocks issued by the Board under this section shall be issued, transferred, dealt with and re-deemed in such manner as the Jharkhand Government may by general or special order direct.

(5)
All moneys received by or on behalf of the Board shall constitute the 'Marketing Development Fund.')

33D.
[Audit of accounts of the Board.

[Inserted by Act 60 of 1982.]

(1)
The accounts of the Board shall be subject to audit under the [Jharkhand and Orissa Local Fund Audit Act, 1925 (Part II)

(B. and O. Act II of 1925)] and for the purpose of the said Act, the Board shall be deemed to be local authority whose accounts have been declared by the Jharkhand Government to be subject to audit under section 3 of the said Act.

(2)

The Board may make arrangement for internal audit of its accounts as it may deem fit.]

33E.

[Appointment of officers and servants.

[Inserted by Act 60 of 1982.]

(1)

The Board may appoint such officers and servants it considers necessary for efficient performance on such terms and conditions as may be provided for in regulation made by the Board.

(2)

The Board may, with previous approval of the Jharkhand Government or the Central Government as the case may be, appoint a servant of the Central or the Jharkhand Government as an officer or servant of the Board or of a market committee on such terms and conditions as it thinks fit.

(3)

Notwithstanding anything contained in any other provisions of this Act, the Board may constitute cadre of officers and other servants common to all committees as it may deem fit.

(4)

Every person who was holding a post comprised in a cadre referred to in sub-section (3) in any Market Committee (including a Government servant serving on deputation) shall on and from the date of constitution of the cadre (hereinafter in this section referred to as the said date) become a member of the cadre and shall hold his office or service therein by the same tenure, at the same remuneration, and upon the same other terms and conditions and with the same rights and privileges as to pension, gratuity and other matters as he would have held the same on the said date but for the constitution of the cadre and shall continue to do so until his employment as a member of a cadre is terminated or until his remuneration or other terms and conditions of service are revised or altered by the Board under or in pursuance of any law or in accordance with any provision which for the time being governs his service :

Provided that nothing contained in this section shall apply to any such person who, by notice in writing given to the Jharkhand Government may within such time as the Jharkhand Government may by general or special order specify, intimate his intention of not becoming a member of the said cadre.]

33F.

[Supervision and control of the Managing Director.

[Inserted by Act 60 of 1982.]

- Subject to the superintendence of the Board the general control and direction over all the officers and servants of the Board shall be vested in Managing' Director.]

33G.

[Authentication of orders and other instruments of the Board.

[Inserted by Act 60 of 1982.]

- All proceedings of the Board shall be authenticated by the signature of Managing Director or the Secretary and all other orders and other instruments issued by the Board shall be authenticated by signature of the Managing Director, Secretary, Under-Secretary or such other officer of the Board as may be authorised in this behalf by regulation.]

33H.

[Delegation of Powers.

[Inserted by Act 60 of 1982.]

- Subject to the provisions of this Act, the Board may by general or special order, delegate, either unconditionally or subject to such conditions as may be specified in the order, to the Managing Director or sub-committee appointed by it to the Director or any other officer of the Board such of its powers, and duties under the Act as it may deem fit.]

33I.

[Act not to be invalidated by informality, vacancy, etc.

[Inserted by Act 60 of 1982.]

- No act done or proceeding taken under this Act by the Board, or a sub-committee appointed by the Board shall be invalidated merely on the ground of-

(a)

any vacancy or defect in the constitution of Board or sub-committee; or

(b)

any defect or irregularity in the appointment of a person acting as a member thereof; or

(c)

any defect or irregularity in such act or proceeding, not affecting the substance.]

33J.

[Powers and functions of the Board.

[Inserted by Act 60 of 1982.]

(1)

The Board shall subject to the provisions of this Act, perform the following functions and shall have power to do such thing as may be necessary or expedient for carrying out those functions:-

(i)

superintendence and control over the working of the market committees and other affairs thereof including programmes undertaken by such market committees for the development of markets and market areas;

(ii)

giving direction to market committees in general or any market committee in particular with a view to ensure efficiency thereof;

(iii)

any other function specifically entrusted to it by this Act;

(iv)

such other functions of like nature as may be entrusted to the Board by the Jharkhand Government.

(2)

Without prejudice to the generality of the foregoing provision, such power of the Board shall include the power-

(i)

to approve proposal for selection of new sites by the Market Committee for development of market;

(ii)

to supervise and guide the market committees in the preparation of plans and estimates of construction programme undertaken by the Market Committee;

(iii)

to execute all works chargeable to the Board's fund;

(iv)

to maintain accounts in such forms as may be prescribed and get the same audited in such manner as may be laid down in the regulation of the Board;

(v)

to publish annually at the close of the year, its progress report, balance sheet and statement of assets and liabilities and send copies thereof to each member of the Board;

(vi)

to make necessary arrangement for propaganda and publicity on matters related to regulated marketing of an agricultural produce;

(vii)

to provide facilities for the training of officers and servants of the market committees;

(viii)

to prepare and adopt budget for the ensuing year;

(ix)

to grant subventions to market committees for the purposes of this Act on such terms and conditions as Board may determine;

(x)

to do such other things as may be of general interest to market committees or considered necessary for the efficient functioning of the Board.]

33K.

[Execution and Registration of contracts etc.

[Inserted by Act 60 of 1982.]

- Every contract or assurance of property on behalf of the Board shall be in writing and executed by such authority and in such manner as may be provided by regulations.]

33L.

[Regulation.

[Inserted by Act 60 of 1982.]

(1)

The Board may, with the previous approval of the Jharkhand Government make regulations, not inconsistent with this Act and rules made thereunder for the administration of the affairs of the Board.

(2)

In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters:-

(a)

the summoning and holding of meetings of the Board, the time and date when such meetings are to be held, the conduct of business at such meetings and the number of persons necessary to form a quorum thereat;

(b)

the powers and duties of the officers and other employees of the Board;

(c)

the salaries and allowances and other conditions of service of officers and other employees of the Board and of officers referred to in subsection (2) of section 20;

(d)

the management of the property of the Board;

(e)

the execution of contracts and assurances of property on behalf of the Board;

(f)

the maintenance of accounts and the preparation of balance sheet by the Board;

(g)

the procedure for carrying out the functions of the Board under this Act;

(h)

any other matter for which provision is to be or may be made in regulations.]

[Chapter IV-B

[Inserted by Act 60 of 1982.]

Contribution in the State Fund by the Committee

33M.

Every Market Committee shall out of its fund contribute to the Jharkhand Government Fund such percentage of its income derived from licence fees and market fees as may be prescribed by Rules from time to time by the Jharkhand Government.]

Chapter V

Miscellaneous

34.

Duty of members, officers and servants of the Committee to furnish information.

- All members, including the Chairman and Vice-Chairman and all officers and servants of the Market Committee shall furnish information in their possession in regard to the affairs or proceedings of the Committee to the [Board or such other officer authorised by the Board in this behalf, as and when required by it.]

[Substituted by Act 60 of 1982.]

35.

[Power of inspection.

[Substituted by Act 60 of 1982.]

(1)

The Managing Director of the Board or any officer authorised in this behalf by him, by general or special order, shall

have power to inspect or cause to be inspected the accounts of the Market Committee or to institute an inquiry into the affairs of the Market Committee and to require the Market Committee or its Chairman to do a thing or to desist from doing a thing which he considers necessary in the interest of the market or the Market Committee and to make a written reply within a reasonable time stating its or his reason for not desisting from doing it or for not doing such a thing and after considering the reasons given by Market Committee, the Managing Director of the Board or any officer authorised by him may pass such order thereon as he thinks fit.

(2)

The Managing Director of the Board or any other officer authorised under sub-section (1) shall for the purposes of the said sub-section have powers to summon, and enforce the attendance of witnesses and to compel the production of documents by the same means and, so far as may be, in the same manner as provided in the Code of Civil Procedure, 1908 (V of 1908).]

36.

Power of Director to suspend or cancel licence in case of the emergency.

- In case of an emergency, the Director may for reasons to be recorded in writing suspend or cancel the licence of any market functionary and take such other steps as he may deem fit in the interest of the market:

Provided that before passing an order under this section the Director shall give a reasonable opportunity to the functionary concerned to be heard.

37.

[Power of the Board to make arrangements for the performance of the duties and functions of the Market Committee and the Chairman in certain cases.

[Substituted by Act 60 of 1982.]

- Where a Market Committee is unable or not competent due to any order or decision of a court or any other cause to perform the duties, imposed by or under this Act the Board shall make such arrangements as it deems fit for the performance of the duties and functions of such Market Committee and of the Chairman of the Committee.]

38.

Power to pass orders.

(1)

The [Managing Director of the Board]

[Substituted by Act 60 of 1982.]

may, at any time, call for and examine the proceedings of any Market Committee for the purposes of satisfying himself as to the legality of any decision or order passed by the Market Committee and he may after giving an opportunity to the Market Committee to be heard pass order thereon as he thinks fit.

(2)

The [Managing Director of the Board]

[Substituted by Act 60 of 1982.]

may, pending the examination and disposal of the matter under sub-section (1), direct that the execution of the decision or orders of the Market Committee be stayed.

39.

Power to amend the Schedule.

- The Jharkhand Government may, by notification, add to, amend or cancel any of the items of agricultural produce specified in the Schedule.

40.

Acquisition of land for the Market Committee.

(1)

If any land is required for the purpose of this Act, the Jharkhand Government may proceed to acquire it under the provisions of the Land Acquisition Act, 1894 (1 of 1894), or any other law for the time being in force.

(2)

The land shall vest in the Market Committee on payment by the Market Committee of the compensation awarded under the Land Acquisition Act, 1894 (1 of 1894), or any other law for the time being in force and of all other charges incurred by the Jharkhand Government on account of the acquisition.

41.

[x x x x]

[Omitted by Act 60 of 1982.]

42.

Power to exempt specified persons, articles or trades from provisions of the Act.

- The Jharkhand Government may, by notification and subject to such conditions and restrictions as it may consider fit to impose, exempt any class of persons, any commodity, trade or class of trades from all or any of the provisions of this Act.

43.

Recovery of sums due of Government from Market Committee.

- Every sum recoverable by the Market Committee or due from a Market Committee to the Jharkhand Government [or the Board]

[Inserted by Act 60 of 1982.]

under this Act, shall be recoverable as a public demand.

44.

Differences regarding construction of rules, etc. about weight.

(1)

Notwithstanding anything contained in the [Bihar Weights Act, 1947 (Bihar Act XVII of 1947), or the [Bihar Weights and Measures (Enforcement) Act, 1959 (Bihar Act VII of 1959) when a difference arises between an Inspector appointed under sub-section (1) of Section 14 of Bihar Act XVII of 1947 or sub-section (1) of Section 15 of Bihar Act VII of 1959 and any person interested as to the meaning or construction of any rule or regulation as to the method of verifying, adjusting or stamping any weight or weighing instrument in any market area such difference may at the request of the person interested or by the Inspector of his own accord, be referred to the Chief Inspector of Weights, Jharkhand or the Controller of Weights and Measures, Jharkhand, having jurisdiction over the subject matter of dispute, as the case may be, and the decision of the said officer shall, subject to the provisions of sub-section (b) be final.

(2)

An appeal shall lie within the prescribed time from the decision under subsection (1) to the Director of Agriculture, Jharkhand, or such other officer as the State Government may appoint in this behalf and the decision of the Director of Agriculture or such officer, as the case may be, shall be final.

45.

Employees to be public servants.

- The Chairman, the Vice-Chairman, the members of the Market Committee on duty and every employee of the Market Committee shall be deemed to be a public servant within the meaning of Section 21 of the Indian Penal Code, 1860 (XIV of 1860).

46.

Bar of suits in absence of notice.

- [(1) No suit or other legal proceeding shall be instituted against any Market Committee or the Board or any member officer or servant thereof or any person acting under the direction of any such Market Committee, Board, member, officer or servant for anything done, or purporting to be done in good faith as such member, officer or servant or person under this Act, until the expiration of two months after service of notice in writing stating the cause of action, the name, place of abode of the intending plaintiff and the relief which he claims has been, in the case of Market Committee or the Board delivered or left at its office, and in the case of such member, officer, servant or person aforesaid delivered to him or left at his office or usual place of abode, and the plaint shall contain a statement that such notice has been so delivered or left:

Provided that nothing in the section shall be applicable to any suit or other legal proceeding by the Jharkhand Government, the Chairman, the Market Committee, or the Board against any member, officer, servant or other person.]

[Substituted by Act 60 of 1982.]

(2)

Every such suit shall be dismissed, unless it is instituted within six months from the date of the accrual of the cause of action.

(3)

[x x x x]

[Omitted by Act 60 of 1982.]

47.

Protection to persons acting in good faith.

- No suit, prosecution or other legal proceedings shall be instituted against any person for anything done or intended to be done in good faith under this Act or the rules or bye-laws.

48.

[Penalty.

[Substituted by Act 60 of 1982.]

(1)

Any person who contravenes any provision of the Act or any rule or bye-laws or order issued thereunder shall be punishable with imprisonment for a term which may extend to one year and with a fine which may extend to Rs. 1,000 or both:

Provided that in absence of adequate reason to the contrary to be recorded in the judgement of the Court such imprisonment shall not be for a term of less than one month and a fine not less than a sum of Rs. 500.

(2)

If any person is convicted under this section and is again convicted under the Act, Rules or Bye-laws then he shall be punishable f

Provided that in absence of adequate reason to the contrary to be recorded in the judgement of the court such imprisonment shall not be for a term of less than 3 months and a fine of Rs. 1,000.

Explanation. - (1) If a person contravening any provision of the Act, Rules or Bye-laws made thereunder, is a company, every person incharge of, and responsible to the company or firm for conduct of the business of the company or the firm including the Director, Manager or Secretary of the Company or firm shall be guilty for the contravention and shall be liable to be proceeded against and punished accordingly.

(2)

'Company' means any body corporate and includes a firm or other association of individuals; and

(3)

'Director' in relation to a firm, means and includes a partner of the firm.]

49.

Trial and cognizance of offences.

(1)

No court inferior to the court of a Magistrate of the second class shall take cognizance of or try, any offence under this Act or under the rules or bye-laws made thereunder.

(2)

No court shall take cognizance of alleged contravention of the provisions of this Act, the rules or bye-laws or of any order made thereunder except with the previous sanction of the authority prescribed in this behalf.

50.

Audit of the accounts of Market Committee.

- The accounts of a Market Committee shall be subject to audit under the [Jharkhand and Orissa Local Fund Audit Act, 1925 [Part II] (B. & O. Act II of 1925)]

[Substituted for 'Bihar and Orissa' by Jharkhand Notification (Adoption Notification) No. 5-01/2001/10F dated 29.3.2001 [Jharkhand Gazette (extraordinary) dated 31.3.2001]

], and for the purpose of the said Act. the Committee shall be deemed to be a local authority whose accounts has been declared by the Jharkhand Government to be subject to audit under section 3 of the said Act and the Market Committee Fund shall be deemed to be a local fund.

51.

[Power of Government to delegate its power.

[Substituted by Act 60 of 1982.]

(1)

The Jharkhand Government may delegate any of its powers or functions under this Act to the Board or any officer of the Jharkhand Government not below the rank of a Class I Officer.

(2)

With a view to implement the provisions of this Act, the Jharkhand Government may issue, from time to time general or specific direction on policy matters to the Board, as it considers appropriate. The Board shall carry out such direction.]

Chapter VI

Rules and Bye-Laws

52.

Power to make rules.

(1)

The Jharkhand Government may make rules not inconsistent with this Act, for carrying out the purpose of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, the Jharkhand Government may make rules with respect to all or any of the following matters:-

(i)

the election and appointment of members of a Market Committee, the number of members to be elected or appointed by each of the bodies or groups of individuals referred to in Section 9 and the manner of their appointment and election;

(ii)

the preparation and revision of the list of voters from time to time;

(iii)

the filling of casual vacancies in the office of Chairman, Vice-Chairman or other members of the Market Committee;

(iv)

[the election of the Vice-Chairman of a Market Committee;]

[Substituted by Act 60 of 1982.]

(v)

the meeting of the Market Committee and the procedure to be observed at such meetings;

(vi)

[the powers to be exercised and the duties to be performed by a Market Committee, the Chairman, Vice-Chairman and the Secretary;]

[Substituted by Act 60 of 1982.]

(vii)

[the management, control and regulation of a Market and the fee which may be levied by the Market Committee, and subject to the provisions of this Act, the recovery and disposal of such fees;]

[Substituted by Act 60 of 1982.]

(viii)

the issue of licences to traders, commission agents, brokers, weighmen, measurers, surveyors, warehousemen and other persons including persons or firms engaged in the processing or pressing of agricultural produce, operating in the market, the terms on which and the conditions subject to which such licences shall be issued or renewed and the fees to be charged therefor;

(ix)

the provision of facilities for the settlement of any dispute between a buyer and a seller of agricultural produce or their agents, including disputes regarding the quality or weight of the articles, the allowances for wrappings, containers, dirt or impurities or deductions from any causes;

(x)

the prohibition of brokers from acting on behalf of both the buyer and the seller of agricultural produce in any transaction;

(xi)

the provision of accommodation for storing any agricultural produce brought into the market;

(xii)

the preparation of the plans and the estimates of works proposed to be constructed partly or wholly at the expense of the Market Committee and the grant of sanction to such plans and estimates;

(xiii)

the registers and books to be maintained by a Market Committee;

(xiv)

the form in which the accounts of a Market Committee shall be kept, the manner in which they shall be audited and the

time or times at which they shall be published;

(xv)

the preparation and submission for sanction of the annual budget and report and returns to be furnished by a Market Committee;

(xvi)

the investment and disposal of the surplus fund of a Market Committee;

(xvii)

the regulation of advances, if any, given to agriculturists by brokers, commission agents or traders;

(xviii)

the kind and description of the weights and measures and the weighing and measuring instruments which shall be used in transaction of any agricultural produce in a market area;

(xix)

the periodical inspection of all weights and measures and weighing and measuring instruments in use in a market area;

(xx)

the trade allowance which may be made or received by any person in any transaction in an agricultural produce in a market area;

(xxi)

the prevention of adulteration of agricultural produce;

(xxii)

the grading and standardisation of agricultural produce;

(xxiii)

the keeping of a list of prices of agricultural produce in respect of which the market is established;

(xxiv)

the time within which an appeal shall lie to the Jharkhand Government or the officer appointed by it in that behalf under sub-section (2) of Section 44:

(xxv)

the manner in which auction of agricultural produce shall be conducted and bids made and accepted in any market;

(xxvi)

the quantity of agricultural produce for retail sale and consumption under section 15;

(xxvii)

the conditions subject to which the Market Committee may lease, sell or otherwise transfer any property under this Act;

(xxviii)

the procedure and conduct of meetings of the Market Committee;

(xxix)

the discipline, control, punishment, dismissal, discharge, removal of officers and servants of the committee;

(xxx)

any other matter which is required to be or may be prescribed;

(xxxi)

[the preparation and revision of the list of voters, the division of market area into constituencies and the election;]

[Inserted by Act 60 of 1982.]

(xxxii)

[the person by whom and the form in which copies of documents and entries in the books of a Market Committee or the Board may be certified and the charges to be levied for the supply of such copies;]

[Inserted by Act 60 of 1982.]

(xxxiii)

[the manner in which the inquiry and inspection of the Market Committee shall be held;]

[Inserted by Act 60 of 1982.]

(xxxiv)

[the restrictions and conditions subject to which a Market Committee may enter into contracts;]

[Inserted by Act 60 of 1982.]

(xxxv)

[the circumstances in which any agricultural produce shall be deemed to be adulterated;]

[Inserted by Act 60 of 1982.]

(xxxvi)

[the fees payable in respect of appeals and revision under this Act the rules and the fees payable in respect of any other matter; and]

[Inserted by Act 60 of 1982.]

(xxxvii) any other matter for which there is no provision in this Act and for which provision is, in the opinion of the Jharkhand Government, necessary for giving effect to the purposes of this Act.]

[Inserted by Act 60 of 1982.]

(3)

The power to make rules conferred by this section is subject to the condition of the rules being made after previous publication.

(4)

Every rule made under this section shall be laid as soon as may be after it is made, before each House of the State Legislature while it is in session for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

53.

Power to make bye-laws.

(1)

The Market Committee may with the previous sanction of the Director or any other officer specially empowered in this behalf by [the Board,]

[Substituted by Act 60 of 1982.]

in respect of the market area under its management, make bye-laws not inconsistent with this Act and the rules, for carrying into effect the purposes of this Act.

(2)

Such bye-laws shall be made after previous publication.

(3)

[In particular and without prejudice to the generality of the foregoing provisions, the bye-laws may be provided for-

(i)

the regulation of business of the Market Committee;

(ii)

the regulation of the business of sub-committee of the Market Committee;

(iii)

the conditions of delegations of powers, functions and duties of the Market Committee to sub-committee;

(iv)

the appointment and conditions of services of officers and servants of the Market Committee;

(v)

the assignment of powers, functions and duties to the officers and servants of the Market Committee;

(vi)

the procedure for granting renewal, suspension or cancellation of licences under this Act and the circumstances in which any suspension or cancellation of a licence may be annulled by the Market Committee;

(vii)

the conditions for trading or operating in any capacity as a market functionary within the market area;

(viii)

the control and regulation of dealing between sellers and buyers;

(ix)

the enforcement of the weightment of notified agricultural produce in due time;

(x)

the enforcement of issue of immediate receipt to the producer in respect of agricultural produce entrusted by the producer to the trader for sale;

(xi)

the procedure of sales of notified agricultural produce in the yards and outside within the market area;

(xii)

the sales of notified agricultural produce in the yards under the direct supervision of the staff of the Market Committee;

(xiii)

the execution of agreement of sale soon after the sale is agreed upon;

(xiv)

the taking of delivery of goods soon after the agreement of sale is effected;

(xv)

the payment of price of agricultural produce by the purchasers to the sellers at the time of taking delivery of goods in all cases of direct purchases made from the producer without the assistance of a commission agent;

(xvi)

the fixing of the maximum period of credit permissible to the purchaser from the commission agent from the date of agreement of sale;

(xvii)

the enforcement of prompt payment by the commission agent to his principal soon after delivery of agricultural produce is given to the purchaser;

(xviii)

the enforcement of payment of the price of agricultural produce by the purchaser to the commission agent as and when it falls due in accordance with the terms of credit where the commission agent has allowed credit before the expiry of the maximum terms of credit permissible under the bye-laws;

(xix)

the procedure to be adopted where any licenced trader suspends payment or becomes insolvent or is otherwise unable or refuses or neglects to discharge his liabilities and obligations in relation to transactions in agriculture produce in the market area and the rights, duties and liabilities of such trader and those with whom he had such transaction and the manner in which and terms upon which they are to be closed or passed on;

(xx)

the enforcement of the submission of returns, reports and statements from the market functionaries to the Market Committee and recovery of the market fee;

(xxi)

the enforcement of the production of account books, files and documents of the market functionaries for inspection;

(xxii)

the prevention of adulteration of agricultural produce;

(xxiii)

the licence fee payable in respect of licences issued to different classes of market functionaries;

(xxiv)

the fixing of the percentage of the security amount to be deposited or the amount of Bank guarantee to be furnished by traders;

(xxv)

the travelling allowances and daily allowance of the members of the Market Committee;

(xxvi)

the procedure for entry and inspection of places of business and other places;

(xxvii)

the assistance to be rendered to a seller where he sells his agricultural produce directly to a purchaser without the assistance of a commission agent;

(xxviii)

the regulation of admission of market functionaries in the market and control over the behaviour of such functionaries;

(xxix)

the form of application for licence, the qualifications and disqualifications for securing the renewal of different kinds of

licences, the procedure for the enquiry for verifying the correctness of the statements made in the application for licences;

(xxx)

the opening and closing of marketing in the yards;

(xxxi)

the books, registers and documents to be kept and maintained and the compilation of statement to be prepared from the return received from the market functionaries and the registers, books and documents to be kept and maintained by the market functionaries; and

(xxxii)

any other matter in respect of which bye-laws are required to be or may be made under this Act and the rules made thereunder.

(4)

If the Market Committee fails to make such bye-laws or such amendments of the bye-laws and forward the same to the Director for approval in accordance with the provisions of sub-section (3) within the time specified in such order, the Director may, after giving the Market Committee a reasonable opportunity of being heard, by order make such bye-laws or amendments thereto as the case may be and they shall be deemed to have been made as amended by the Market Committee in accordance with the provisions of this Act.]

[Substituted by Act 60 of 1982.]

[Form A]

[Forms A to D added by Act 60 of 1982.]

[See Section 27A(2)]

Counterfoil

1. Market Committee.....
2. Date.....
3. Name of trader.....
4. Licence No.....
5. Last date when market fee paid with receipt no.....

Purchased

Sold

Date of transaction

Name of Agricultural Produce

Name of Seller

Weight/ Rate/ Value

Whether fee leviable, if not why?

Amount of fee leviable

Name of buyer

Weight/ Rate/ Value

Whether fee leviable, if not, why?

Amount of fee leviable

Remarks

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 10
- 11

Total.....

Signature of trader.....

Form B

[See Section 27(3)]

Register of Sale and Purchase of Agricultural Produce

Date

Name of Agricultural Produce purchased

Name and License No. of trader

Quantity

Rate

Value of Agricultural Produce

Whether fee is leviable, if not, why?

Fee chargeable

Fee recovered

No. and date of the receipt issued

Balance of fee to be recovered

Date of recovery of Balance of fee

Remarks

1

2

3

4

5

6

7

8

9

10

11

12

13

Monthly.....

Total

Form C

[See Section 27A (5) and (7)]

Assessment Notice

Office of the Agricultural Produce Market Committee.....

To,

M/s.....Trader Licence No.....Address

Whereas.

(a)

You have not furnished return/correct return in Form A for the period from.....to.....

(b)

You have habitually made default in the submission of return for the period from.....to and it appears to the Market Committee that you have wilfully failed to furnish such return in respect of the above mentioned period.

And whereas, it appears to be necessary to make assessment under section 27A (7) of the Bihar Agricultural produce Markets Act in respect of the above mentioned period. You are hereby directed to attend in person or by an authorised agent at (Place).....on (Date).....at time.....and produce or cause there to be produced, at the said time and place, accounts specified below for the purpose of such assessment, together, with the objection which you may wish to prefer and

evidence you may wish to adduce in support thereof and show cause why in addition to the Market fee levied on the basis of assessment, a penalty prescribed under sub-section (8) should not be imposed upon you.

In the event of your failure to comply with this notice, the Market Committee shall proceed to assess the amount of market fee leviable under sub-section (7) of section 27A, to the best of its judgement.

Date.....

Secretary

Market Committee

Form D

[See sub-section (10) of Section 29A]

Demand Notice.

Market

Committee.....No.....date.....

M/s.....Licence

No.....Address.....

You are hereby informed that your purchases during the period from.....to.....has been assessed for the levy of market fee and penalty, etc., as under.

(a)

Assessed value of purchases made.....

(b)

Market Fee chargeable.....

(c)

Deduct Market Fee already paid, if any.....

(d)

Net payable (b-c).....

(e)

Penalty.....

(f)

Total (b + c).....

You are hereby directed to pay the sum of.....to the.....Market Committee.....at its office at (Place).....on or before (Date) failing which the said sum will be recovered from you as Public demand.

Secretary

Market Committee

Date.....

Appendix 2

List of Agricultural Markets in Bihar

District

Name of the Market Committee

*Market area

Date of establishment of market committee

1

2

3

4

Patna

Patna City

11.11.1970

Mussalahpur

9.6.1965

Fatwah

9.6.1965
Barh
9.6.1965
Mokameh
2.10.1963
Danapur
9.3.1970
Bihta
9.3.1970
Massaurhi
15.4.1974
Nalanda
Biharsharif
6.5.1970
Hilsa
28.2.1974
Gaya
Gaya
2.10.1963
Jehanabad
4.11.1970
Sherghati
3.6.1970
Arwal
25.9.1970
Nawadah
Warsaliganj
31.8.1974
Nawadah
26.2.1976
Rohtas
Sasaram
2.10.1963
Nokha
9.6.1965
Mohania
14.9.1976
Natwar
15.5.1974
Bhojpur
Arrah
9.6.1965
Buxar
2.10.1963
Behea
28.2.1976
Hasan Bazar
10.4.1976
Aurangabad
Daudnagar
14.4.1973

Aurangabad
30.6.1986
Bhagaipur
Bhagaipur
2.10.1963
Naugachia
4.11.1970
Colgong
11.11.1970
Sultanganj
29.9.1975
Barahat
7.11.1975
Monghyr
Lakhisarai
9.6.1965
Khagaria
9.9.1965
Barbigha
Not available
Monghyr
11.11.1970
Sheikhpura
24.6.1970
Jamui

Santhal Pargana
Deoghar
6.5.1970
Sahebganj
11.7.1969
Barharwa
25.9.1975
Dumka
9.3.1970
Madhupur
17.10.1975
Pakur
31.5.1966
Godda
10.1.1979
Jamtara
10.1.1979
Begusarai
Begusarai
14.9.1967
Teghra
18.4.1973
Bakhari
28.2.1975
Darbhanga

Darbhanga Behera

2.10.1963

Madhubani

Ghoghardiha

31.10.1973

Jainagar

1.5.1965

Jhanjharpur

20.12.1974

Madhubani

3.5.1975

Benipatti

3.5.1975

Samastipur

Samastipur

9.6.1965

Saidpurhat

20.7.1974

Dalsinghsarai

9.6.1965

Rosera

9.3.1965

Sahpur Patori

29.9.1975

Ranchi

Ranchi

2.10.1963

Khunti Gumla

28.2.1975

Lohardagga

13.12.1975

Simdega

3.4.1976

Singhbhum

Chakulia

11.11.1970

Saraikela

20.7.1981

Jugsalai Chaibasa

11.11.1970

Palamau

Daltonganj

11.11.1970

Garhwa

15.5.1974

Latehar

10.1.1979

Hazaribagh

Hazaribagh

11.11.1970

Giridih

Giridih
11.7.1969
Koderma
23.3.1976
Dhanbad
Jharia
9.3.1970
Bokaro
20.7.1976
Purnea
Gulabbagh
2.10.1965
Kishanganj
9.6.1965
Kasba
9.6.1965
Banmankhi
9.6.1965
Araria
9.6.1965
Thakurganj
7.11.1965
Bahadurganj
24.11.1974
Bhawanipur Forbesganj
26.2.1976
Saharsa
Supaul
9.6.1965
Bihariganj
9.6.1965
Murliganj
9.6.1965
Nirmali
6.5.1970
Singheshwarsthan
8.4.1973
Tribeniganj
19.10.1975
Birpur
15.9.1974
Saharsa
14.4.1976
Simri Bakhtiarpur
30.3.1976
Katihar
Katihar
2.6.1965
Barsoi
28.2.1975
Muzaftarpur

Mazaffarpur
2.10.1963
Motipur
20.7.1974
Saraiya
29.9.1975
Sahebganj
29.9.1975
Sitamarhi
Sitamarhi
2.10.1963
Bairgania
14.9.1967
Puri
14.9.1967
Sursand
20.7.1974
Sonbarsa
20.7.1974
Vaishali
Bhagwanpur
6.8.1975
Goraul
6.8.1975
Hajipur
8.9.1975
East Champaran
Chakia
9.6.1965
Motihari
9.3.1970
Raxaul
20.7.1974
West Champaran
Bettiah
9.6.1965
Narkatiaganj
20.7.1975
Chanpatia
25.9.1974
(Ramnagar) Bagaha
17.7.1976
Saran
Chapra
11.7.1976
Dighwara
15.5.1974
Gopalganj
Gopalganj

Siwan

Siwan

17.10.1975

Maharajganj

11.11.1970

* For Market area see Notification No. S.O. 229 dated 31.8.1992 and also other Notifications issued under Section 4 of the Act.

Notifications

[S.O. 550 the 22nd March, 1976 [Published in Bihar Gazette (extraordinary) dated 22.3.1976]. - In exercise of the powers conferred under section 42 of the Bihar Agricultural Produce Markets Act, 1960, the Governor of Bihar is pleased to exempt all sugar mills from the provisions of section 15 of the Bihar Agricultural Produce Markets Act, 1960 with regard to their sale and purchase of Agricultural Produce notified under sub-section (1) of section 4 of the said Act.]

Related AI tags, queries and research notes

Translation